

The Claremont City Council held a meeting on Monday, September 10, 2018, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:00 p.m.

Members of the Council present were:

At-Large Councilor Claire Lessard
Ward III Councilor Jonathan Stone
Assistant Mayor Allen Damren
Mayor Charlene Lovett
At-Large Councilor Jeremy Zullo
At-Large Councilor Abigail Kier (Arrived at 6:04 p.m.)
At-Large Councilor Nicholas Koloski
Ward II Councilor Scott Pope (Arrived at 6:02 p.m.)

Absent:

Ward I Councilor Andrew O’Hearne

AGENDA CHANGES

None

CITIZEN’S FORUM

None

OLD BUSINESS

Discussion of Governor’s Veto of SB365 and SB446

Senate Bill 365 relative to the use of renewable generation to provide fuel diversity.
Senate Bill 446 relative to net energy metering limits for customer-generators.

Mayor Lovett had received a request to join other NH Mayors and sign a letter to request an override of the Governor’s veto of both SB365 and SB446.

At 6:02 p.m. Mr. Pope arrived. At 6:04 p.m. Ms. Kier arrived

Mayor Lovett said SB365 is on top of legislation that was already passed to help biomass plants. Those plants still need to be subsidized. Biomass for electricity is not efficient. Technology is coming that will make it less desirable. Forestry groups need a market for low quality wood. 70-80% of NH forests are made of low quality wood. Low quality wood feeds the biomass,

wood pellet manufacturers and people who burn wood for heating their homes. The fear is if biomass goes off line then that market will be reduced. Claremont requires wood ash to mix with sludge for fertilizer. She said the City relies on the Springfield biomass facility for wood ash. If you can't break down the sludge then it would need to be transported elsewhere for disposal.

Mr. Pope said the biggest problem with SB365 is the inclusion of the waste energy incinerator in Concord. He will recommend overriding the veto with reluctance.

Mr. Pope said SB446 has the potential to help NH catch up to neighboring states.

Mayor Lovett opened the public hearing.

Rebecca MacKenzie, Ward 2 resident and Claremont Energy Advisory Committee (EAC) member, said regarding forests, that 70-80% forests are of low quality wood. She is concerned about labeling forests for biomass. They are so much more to us (i.e. habitat for wildlife and recreation). There are other ways sludge can be transformed into fertilizer. She said she was in favor of overriding the veto of SB446.

James Contois, Ward 2, said he was concerned that because there is support for the Concord Wheelabrator in SB365, that perhaps the Wheelabrator plant on Grissom Lane would become viable. He said that it had put out hundreds of pounds of lead through its smokestack and that if people care about the children, they can't let it come back on line. He hopes the Governor's veto is not overridden for SB365.

Meg Hurley, Ward 2, talked about the documentary "BURNED: Are Trees the New Coal?". She said she asked someone if the scrubbers on the waste to energy stacks clean the air and she was told no. She said she hopes Wheelabrator never comes back.

Henry Herndon, NH Sustainable Energy Association, said the Sierra Club put together the documentary and they are from out of state. He said the documentary is focused on southern plantations and doesn't apply to NH's forestry industry. NH based groups like NH Sustainable Energy Association, Society for Protection of NH Forests and the Audubon Society support this bill because of the sustainable forestry practices. In addition, they support SB446 because it is a key piece in creating a NH based sustainable energy economy. In reference to subsidies, all forms of energy are subsidized. This is an investment in NH based resources that will provide diversity and will relieve some of our dependence on imported fuels. If you lose 100 megawatts of generation capacity in state, you have to make up for it with out-of-state capacity which means no local jobs.

Cornelia Sargent, Ward 2, said the Concord Wheelabrator includes trash incineration in its portfolio, which is dangerous. Biomass incineration is not efficient. She worried that special interests are speaking louder. Some ratepayers will pay through their utility bills, but all will pay through their health.

Katie Lajoie, Charlestown resident and public health nurse, said she has an interest in incineration issues. She urged the Council to vote to sustain the Governor's veto. Supporting

biomass, supports trash incineration. It is not clean or renewable. She said there is a Wheelabrator report that in 2017 over 80 pounds of lead was emitted into the air of Concord from one of its boilers. Lead is measured in micrograms (one millionth of a gram). Biomass is not clean. She hopes the Council chooses to vote to sustain the veto. She talked about subsidies and that they won't help the loggers, but will go to the investors. She said SB365 subsidizes more than half of our state's top 13 air polluters.

Earnest Montenegro, Ward 1, agreed Council should sustain the veto. Biomass, like zero sort recycling, leaves a lot of bad stuff behind. He said he moved here in 1990 and the fight over the Claremont Wheelabrator was nasty. It would be terrible if Wheelabrator were to return to Claremont.

Walt Stapleton, Ward 3 resident and candidate for NH Legislature District 5, said he would not give an opinion on overriding or sustaining the veto. He said he saw the BURNED documentary and what struck him was the inefficiency. Wood burning is 25% efficient. When wet wood is used, it takes heat to drive out the moisture. He's not satisfied that 25% efficiency is enough to base future plans on.

Donna Montenegro, Ward 1, always thought biomass was a great thing, but after watching the documentary, she has a different view. She asked why we are not going with solar and wind. She is against the veto override of SB365.

Roberta Hutchins, Ward 3, made reference to a Union Leader article dated September 9, 2018, "Another View – Catherine Corkery and James McCaffrey: Biomass bill sells out NH residents." The article stated the Legislature should uphold the veto of SB365. Ms. Hutchins said she is on the EAC. She would like to sustain the veto of SB365.

Mr. Herndon said, regarding the investment, a study done by Plymouth State University found that 931 jobs in the state would be at risk if this veto is not overridden and that translates into 234 million dollars. Regarding the BURNED documentary, plants in NH are not burning railroad ties as depicted in the documentary. The Society for the Protection of NH Forests and the Audubon Society are in support of these two bills.

Mr. Koloski said he is not comfortable with the short amount of time left in the meeting to discuss this [a Planning Board meeting was scheduled to begin at 7:00 p.m.]. Regarding the cost to the City to process the sludge, that is an enterprise fund and would affect sewer users only. He is concerned about the public health.

Mr. Damren said that a memo from Vic St. Pierre, Assistant Public Works Director, to the State Senator and State Representatives doesn't guarantee what the cost increase will be to dispose of the sludge without the wood ash the City has been using. After all the work that has been done in Claremont regarding lead abatement, his vote will be to sustain the veto of SB365 and override the veto of SB446. Ms. Kier agreed with Mr. Damren. This is not a sustainable practice.

Mr. Zullo is not in favor of overriding the veto because of Wheelabrator's inclusion. He said logging will suffer if the biomass plants shut down. Good logging practices promote growth of the forests.

Mayor Lovett said it is unfortunate that Wheelabrator was folded into SB365. This community has demonstrated its commitment to protect the health of its citizens. She said there will be a revolution in the energy sector that will be as disruptive as the internet was. She is in favor of sustaining the veto of SB365 and overriding the veto of SB446.

Mr. Pope said he understands the need for wood burning plants, but because of this community's moratorium on Wheelabrator and the inclusion of the Concord Wheelabrator in SB365, he will vote to sustain the veto of SB365.

Ms. Lessard said she would vote to sustain the veto on SB365 and override the veto on SB446. Mr. Stone concurred.

A motion was made by Mr. Damren and seconded by Ms. Kier to sustain the Governor's veto on Senate Bill 365.

Voice vote: motion carried 8-0.

A motion was made by Mr. Damren and seconded by Ms. Kier to support the override of the Governor's veto on Senate Bill 446.

Voice vote: motion carried 8-0.

Council agreed Mayor Lovett should send separate notices of both votes. Mr. Damren said to be sure to send the information to the Delegation as well.

ADJOURNMENT

At 7:04 p.m., a motion was made by Mr. Damren and seconded by Mr. Stone to adjourn.

Voice vote: motion carried 8-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council